

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 18
JUDICIAL OFFICER: DANIELLE K DOUGLAS
HEARING DATE: 12/19/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued.

Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D18. Zoom is approved for all hearings except Issue Conferences and Trials. **Dept. 18's telephone number is: (925) 608-1118.**

NOTE: In order to minimize the risk of miscommunication, Dept. 18 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 18's email address is: dept18@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 18 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
*HEARING ON MOTION IN RE: DEMURRER TO 2ND AMENDED COMPLAINT
FILED BY: HARRIS, BRYANT
TENTATIVE RULING:

Hearing continued on motion of the court to January 9, 2026, at 9 a.m.

2. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
***HEARING ON MOTION IN RE: STRIKE PRAYER FROM 2ND AMENDED COMPLAINT**
FILED BY: HARRIS, BRYANT
TENTATIVE RULING:

Hearing continued on motion of the court to January 9, 2026, at 9 a.m.

3. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: WIENER, SETH W,
TENTATIVE RULING:

Defendant Wiener requests that the court impose terminating sanctions against Plaintiff Wang for her repeated violations of this court's orders relating to discovery. The most glaring violation of a court order is Plaintiff's failure to appear at her scheduled deposition on September 18, 2025. The date of September 18, 2025, was scheduled in court on the record after Defendant's motion to compel deposition was granted. On August 29, 2025, Plaintiff had appeared at the court hearing for Defendant's motion to compel her deposition on Zoom. At that hearing the court gave Plaintiff three proposed deposition dates and allowed Plaintiff to select the date of the deposition from one of the three proposed dates. Even at the hearing Plaintiff was reluctant to commit to any date for her deposition. Not surprisingly, Plaintiff attempted to continue the deposition by filing an ex parte motion on the date her deposition was scheduled. Plaintiff then showed up on Zoom to her deposition late stating her equipment wasn't working. The court notes that every appearance Plaintiff has made in this case has been remotely by Zoom. The Court does not find it credible that Plaintiff's equipment conveniently failed on the date of the deposition.

Because Plaintiff's deposition is integral to the defense conducting discovery on all issues relating to the case evidentiary sanctions would not cure Plaintiff's refusal to appear for her deposition. Additionally, monetary sanctions have not deterred Plaintiff's abuse of the discovery process. Accordingly, the court issues terminating sanctions dismissing Plaintiff's case.

4. 9:00 AM CASE NUMBER: C23-00556
CASE NAME: JULIANA RECINO VS. TOTALMED STAFFING, INC., AN ILLINOIS LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE:**
FILED BY:
TENTATIVE RULING:

The court grants the motion for final approval and enters judgment in this case pursuant to the terms of the settlement.